REPORTABLE (32)

DESIRE KUNAKA
v
THE STATE

SUPREME COURT OF ZIMBABWE
MAVANGIRA JA, CHITAKUNYE JA & KUDYA JA
HARARE: 24 OCTOBER 2022

T.L. Mapuranga with *A. Rubaya*, for the appellant

T. Mapfuwa, for the respondent

CHITAKUNYE JA: This is an appeal against the whole judgment of the High Court of Zimbabwe, sitting at Harare handed down on 26 October 2020, dismissing the appellant's appeal against conviction and sentence in the magistrate's court for the crimes of contravening s 70 and s 65 of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*]'the Code'.

At the hearing, the court dismissed the appeal in its entirety. The reasons for the dismissal of the appeal are provided hereunder.

FACTUAL BACKGROUND

On 15 May 2014, the appellant was arraigned before the Regional Magistrates' Court on three counts of contravening s 65 of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] – "the Code"- that is, three counts of the crime of rape.

In the first count, it was alleged that the appellant had unlawful sexual intercourse with N, a female juvenile, aged 15 years, on 9 December 2013 at house number 52 Jongwe Road, Mufakose, without her consent.

In the second and third counts, it was alleged that the appellant had unlawful sexual intercourse with M, a female juvenile, aged 15 years, on two different dates, that is on 21 and 25 February 2014, at house number 1582 Stopover, Epworth, without her consent

In his defence, the appellant denied having committed all the counts of rape. On the first count, the appellant's defence was that the first complainant, N, was his girlfriend but the two of them did not have sexual intercourse. The appellant also stated that he could not have had sexual intercourse with the complainant because his grandmother was in the house during the period of the alleged incident. He contended that he was being falsely incriminated by the complainant's father because his parents and relatives refused to discuss a marriage proposal between him and the complainant put forth by the complainant's father.

On the second and third counts, the appellant's defence was to the effect that he never had sexual intercourse with M on either 21 or 25 February 2014. He stated that the allegations against him had been fabricated by the second complainant who was ill-advised by other members of her family who were bent on destroying the appellant as well as his mother and grandmother.

At the trial, evidence for the State was led from four witnesses, including the nurse who examined the first complainant in respect of the first count. In respect of the second and third counts, a further four witnesses, including the nurse who examined the second complainant, gave evidence.

The medical reports in respect of each of the complainants were tendered into evidence confirming that both juvenile complainants had been sexually violated.

The appellant gave evidence and called his uncle Dennis Katumba, also known as 'Brian's father', as his witness.

After a full trial, the trial court convicted the appellant of the crime of unlawful sexual intercourse with a minor in contravention of s 70 of the Code in respect of the first count and rape, as charged, in respect of counts 2 and 3.

The appellant was sentenced to 14 months imprisonment on the first count and to eight years imprisonment for each count in respect of counts 2 and 3. In total, a globular sentence of seventeen years and two months' imprisonment was imposed of which six years were suspended for five years on condition that within that period the appellant does not commit any offence of a sexual nature for which he is convicted and sentenced to a term of imprisonment without the option of a fine.

Aggrieved, the appellant appealed to the High Court – "the court *a quo*" – against both the convictions and sentences.

The court *a quo* upheld the convictions in respect of the first count for contravening s 70 and the third count of rape. It allowed the appeal against the second count of rape.

In arriving at its determination the court *a quo* noted, *inter alia*, that the State bore the *onus* to prove its case against an accused person beyond reasonable doubt in respect of each count. There is no *onus* on the accused person to convince the court that his version of events is true. An accused person has only to give a version that is reasonably possibly true in answer to the allegations. The court has to then evaluate the totality of the evidence in ascertaining whether the State has proved its case beyond reasonable doubt in respect of each count. It added that the appellant could only be found guilty if his version was not only improbable but beyond a reasonable doubt false.

On the first count, the court *a quo* held that the first complainant, could not be entirely discredited simply because she had at the beginning of questioning by her relatives,

denied having an affair with the appellant and that she did not have consensual sexual intercourse. The court *a quo* noted that it seldom happens that girls under the age of consent voluntarily disclose indulging in consensual sexual intercourse for fear of repercussions from their parents. The court also noted that the appellant had not challenged the complainant's father's evidence in the trial court to the effect that, upon being confronted with the allegations, the appellant had asked for forgiveness.

The court *a quo* further noted that the trial court correctly held that the medical report confirmed that the complainant had had sexual intercourse in the recent past and that the hymenal tears were still in the process of healing.

On the second and third counts of rape, the court *a quo* observed that the complainant was not specific about the exact dates but that the incidents happened on a Friday and a Monday. On the second count the court *a quo* alluded to the delay in reporting as affecting the reliability of that evidence on the second count as the report was only made after the third incident. Premised on the delay in reporting the second count, an explanation for the delay which the court deemed unsatisfactory and the State's concession, the court *a quo* allowed the appeal on this count and hence the appellant was found not guilty and acquitted on this count.

On the third count the court *a quo* noted that the incident occurred when the complainant was preparing to go to school. She went to school after the rape incident and upon return she promptly reported to a domestic worker, Nancy Homani, whom she asked to escort her to the police station. Nancy confirmed receipt of the report on that date and that the report was of two incidents of rape on two different dates as testified to by the complainant. The court *a quo* observed that on the third count there was no significant delay in reporting the offence and upheld the report.

Consequent to the above, the court *a quo* dismissed the appeal against conviction and sentence in respect of the first and third counts. The court *a quo* consequently altered the appellant's sentence to read:

> "Of the total of 9 years and 2 months, 3 years' imprisonment is suspended for 5 years on condition the accused does not during that period commit any offence of a sexual nature for which upon conviction he will be sentenced to imprisonment without the option of a fine."

Aggrieved by the court *a quo*'s dismissal of his appeal on the first and third counts of contravening s 70 and contravening s 65 of the Code respectively, the appellant noted the present appeal on the following grounds.

GROUNDS OF APPEAL

Ad conviction
First Count

1. The Court *a quo* erred at law in upholding the conviction of the appellant by the Trial Court on the basis of an inadmissible complaint which was extracted from the complainant by coercion and undue influence and in any event contrary to the rules governing complaints in sexual matters.
2. The Court *a quo* erred at law in upholding the decision of the Trial Court which misapplied the principles (*sic*) circumstantial evidence by making inferences to the behaviour of girls below sixteen (16) years' inability to make voluntary complaints about sexual intercourse and immaturity yet there were no proved facts placed before the trial court or the court *a quo* in support such an inference. (*sic*)
3. The court *a quo* lost its path in upholding the conviction of the appellant on the basis of an alleged engagement between the complainant and appellant families and an alleged apology to the Complainant's father in circumstances where there was no such evidence of the apology.

4. The court *a quo* fell into error of law in upholding the appellant's conviction on the basis of his failure to win the faith of the bench in circumstances where his defence was reasonably possibly true and had been sustained during trial.
5. The Court *a quo* lost its path in upholding the appellant's conviction when the trial Court ignored evidence that was led through a state witness, NANCY HOMANI, showing that the Complainant never had a sexual encounter with the Appellant at the time, the offence is alleged to have been committed.

Third Count

1. The Court *a quo* erred at law in upholding the appellant's conviction of rape in spite of clearly established *alibi* by so doing the court *a quo* improperly reversed the *onus* of proving the defence of an *alibi* on the appellant.
2. The Court *a quo* erred at law in upholding the conviction of the appellant of rape in circumstances where the State failed to rebut the accused's defence that he was a victim of false incrimination by the complainant.
3. The Court *a quo* misdirected itself in upholding the appellant's conviction ignoring the first recipients' evidence of NANCY HOMANI which materially differed in sequence and time as to the evidence of the complainant herself.
4. The Court *a quo* erred at law in upholding the conviction of the appellant in circumstances were the trial court in its judgement rectified discrepancies in evidence by a State witness, NANCY HOMANI, yet the State never re-examined its witness to comment over such discrepancies.

RELIEF SOUGHT

The appellant prays that the Court grants the relief below:

(a) That the instant appeal succeeds in its entirety.

(b) That the judgment of the Court *a quo* in upholding the conviction of the accused person, be quashed and in its stead substituted with the following:

> "That the accused person be and is hereby found not guilty and acquitted of counts 1and 3".

It is apparent from the grounds of appeal and the relief sought that the appeal is, in effect, against conviction only.

ISSUES FOR DETERMINATION

Though there are numerous grounds of appeal, the issue for determination maybe distilled to: whether or not the court *a quo* erred and misdirected itself in upholding the appellant's convictions on counts 1 and 3.

In motivating the appeal, Mr *Mapuranga*, for the appellant, submitted that he had little to submit on the conviction for contravening s 70 of the Code in count 1 save to abide by the submissions in the heads of arguments. In this regard he submitted that the evidence on count 1 showed that the complaint of rape was an extortionate attempt, which was made because the appellant's family had rebuffed a marriage proposal that was made by the complainant's family. He further submitted that the complaint was inadmissible as it was obtained after the complainant had been put under pressure.

Regarding the third count of rape, for contravening s 65 of the Code, Counsel submitted, *inter alia*, that the date of the alleged offence was not clear as 25 February 2014 was on a Tuesday whilst Nancy Homani, who received the report, seemed to say the incident happened on Monday. He also submitted that the medical report reflected that the complainant was examined after the lapse of one to three days whilst Fortunate Mubata, a medical officer who examined the complainant, gave oral evidence to the effect that she examined the complainant after two to three days after the abuse. On the basis of what he perceived to be

inconsistencies on the date of the offence, counsel submitted that the court *a quo* erred and misdirected itself in upholding the conviction. He also submitted that the court *a quo* did not explain why it was confirming the conviction in count three when it had allowed the appeal in count two as the two counts involved the same complainant. He further submitted that this is especially so considering that the appellant's defence was that the complainant had falsified her report because the appellant had found her naked with another boy (Tapiwa). Further, counsel also submitted that the appellant was not required to explain why a complainant would lie against him as the trial court seemed to have expected. Counsel also submitted that the court *a quo* erroneously placed the onus to establish the veracity of his *alibi* on the appellant.

Per contra, Mr *Mapfuwa*, for the respondent, contended, *inter alia*, that the court *a quo* did not err or misdirect itself in confirming the conviction in respect of counts one and three. On the first count, counsel submitted that the medical report confirmed that the complainant had had sexual intercourse in the recent past as the hymen was in the process of healing and the complainant pointed at the appellant as the perpetrator. Counsel submitted that the manner in which the report pointing at the appellant was made was immaterial on a charge of c/s 70 of the Code. He also alluded to the fact that when the case came to light, the appellant ran away to Epworth. He further submitted that it was incorrect to say that the complainant's family wanted to get the appellant to marry the complainant and that when this proposal was rebuffed, they then influenced the complainant to allege that she had been raped by the appellant. It was, in fact, the appellant's family that, in a bid to resolve the trouble the appellant was in, proposed marriage to which the complainant's father refused and instead reported the rape to the police.

On the third count Mr *Mapfuwa* submitted that the trial court convicted the appellant on the basis of the credibility of the witnesses. The findings on credibility were not

shown to have been irrational or out of sync with the evidence adduced. He also submitted that whilst the witnesses were not sure of the date of this offence, Simbarashe Madzinde (Tapiwa) clarified the date of the report and his evidence was not shaken on this aspect. On the appellant's defence of *alibi*, counsel submitted that such a defence was belatedly raised and was not part of the appellant's defence in the defence outline. Equally, the assertion that the complainant cried rape because she had been found naked with another boy by the appellant, was never part of his defence outline and was in fact belatedly raised as an afterthought.

ANALYSIS

A careful analysis of the record of proceedings shows that the court *a quo* cannot be faulted for upholding the trial court's conviction and sentence in respect of the remaining two counts. The court *a quo*, as an appellate court, could only set aside the verdicts reached by the trial court if it was satisfied that there was material misdirection in the trial court's findings of fact and application of the law. In this regard the court *a quo* found no material misdirection in the convictions in respect of counts 1 and 3.

The court *a quo*'s role was to ascertain if there were any material misdirection vitiating the trial court's determinations as argued by the appellant.

In *S* v *Mutsure* SC 62/21 at p 10, para 34, MAVANGIRA JA aptly stated the position of an appellate court in these words:

> "34. It is trite that an appeal to this Court is based on the record. It is also trite that an appellate court will not interfere with the decision of a trial court or tribunal unless the trial court or tribunal fundamentally misdirected itself in arriving at its decision. It is trite that an appellate court will not lightly interfere with a trial court's factual findings."

In *Kereke* v *Maramwidze & Anor* SC 86/21, at p.11, MAKONI JA restated those principles as follows:

"In *Zimre Property Investments Ltd* v *Saintcor (Pvt) Ltd* t/a *Track & Anor* SC 59/16 p 11 para 36 it was held that:

> 'The position is now settled that an appellate court will not interfere with the findings of fact made by a trial court unless the court comes to the conclusion that the findings are so irrational that no reasonable tribunal, faced with the same facts, would have arrived at such a conclusion. Where there has been no such misdirection, the appeal court will not interfere. This position was aptly captured by this Court in *Hama* v *National Railways of Zimbabwe* 1996 (1) ZLR 664 (s). At 670, KORSAH JA remarked:
>
> > 'The general rule of law as regards irrationality is that an appellate court will not interfere with a decision of a trial court based purely on a finding of fact unless it is satisfied that, having regard to the evidence placed before the trial court, the finding complained of is so outrageous in its defiance of logic that no sensible person who had applied his mind to the question to be decided could have arrived at such a conclusion….'"

Count 1

In respect of the conviction for contravening *s* 70 of the Code, the appellant's contention is premised on an alleged lack of a voluntary report by the complainant. The appellant seemed oblivious to the fact that he was not convicted of rape as charged but that of having sexual intercourse with a minor. The issue of lack of a voluntary report was thus irrelevant as the minor consented to the act and would ordinarily not cry foul. The trial court in its assessment of the circumstances of how the offence came to light and the medical evidence tendered held that sexual intercourse was consensual. The conviction was thus based on the age of the complainant. It is in that respect that the court *a quo* in upholding the conviction aptly noted that in cases of consensual sexual intercourse it is seldom that the minor victim will voluntarily reveal the act. As it is, there is no doubt that it took a lot of effort to get the complainant to divulge what had taken place when she was at the appellant's residence. Even then the conviction was not premised on the revelation alone but on the medical evidence which revealed that the complainant's genitals had recently been penetrated and she pointed at the appellant as the perpetrator. The appellant admitted being in love with the complainant and that on the day in question she had visited him at the house where he stayed in Mufakose. It is

that visitation to the house wherein the appellant was, that led to the rumour swirling to the effect that the two had had sexual intercourse which led to the complainant's family members namely; her young sister, grandmother and eventually her father questioning her on the issue. The complainant initially declined to reveal what had happened and instead, fled to a relative's place in Mbare. Her father followed her and brought her back. This is when she opened up alleging that sexual intercourse had taken place without her consent.

An analysis of the record of proceedings shows that the court *a quo* cannot be faulted for upholding the conviction on count one. The court *a quo* observed that the manner in which the report came to light was such that, the trial court was correct in holding that what had been proven beyond reasonable doubt was that the appellant had had consensual sexual intercourse with complainant who was below the age of consent. Where consensual sexual intercourse is involved, one does not expect a hue and cry from the child as she would have consented to the act.

The appellant on his part admitted that the complainant had come to his house and the two had met. He asserted that the two were in love. His defence was simply that he did not have sexual intercourse with her on the day in question. The medical report, compiled a few days after the incident, on the other hand, confirmed that the complainant's genitals had been penetrated and that the hymen was in the process of healing. It was in this scenario that the trial court convicted the appellant for contravening *s* 70 and not *s* 65 of the Code.

The court *a quo* upon meticulously examining the evidence found merit in the trial court's findings. It is in that process that the court *a quo* alluded to the fact that in cases involving consensual sexual intercourse it is seldom that a child victim will voluntarily report the incident as she would have participated with her consent. That point cannot by any stretch of imagination be said to be unreasonable. See *S* v *Nare* 1983 (2) ZLR 135(H).

The court *a quo* correctly noted that it was incorrect to say that the complainant's father reported the matter to the police because the appellant had refused to marry the complainant. The evidence on record shows that it is in fact the appellant's relatives, who proposed marriage but the complainant's father rebuffed that suggestion and instead reported the incident to the police. The appellant did not seriously dispute this. Further, the evidence by the complainant's father that the appellant had apologised for the incident went unchallenged. Given the above, the court *a quo* cannot be faulted for upholding the conviction on count 1. Clearly, the findings of fact made by the trial court were not shown to be irrational or contrary to evidence adduced.

Count 3

It is common cause that after the incident that led to count 1, the appellant left Mufakose for Epworth where he was to reside at the home of the second complainant's mother as they are related. It was whilst he was at that house that the appellant is alleged to have committed the third count.

The appellant's argument as noted from the grounds of appeal and submissions by Mr *Mapuranga* was, *inter alia*, that the court *a quo* "went astray by dismissing the appellant's *alibi* defence when the State, which was required to disprove it, failed to do so".

Per contra, the respondent contended that the appellant did not allege an *alibi* in his defence outline, thus, the defence was not timeously raised as it should have been.

An *alibi* is nothing more than a defence that a person accused of a crime was at a specific place different from the crime scene at the time the crime was being committed. See *Matanga* v *S*, SC 17/15 at p 6. It is settled law that the *onus* to disprove a defence of *alibi* is

on the State. The correct approach in assessing a defence of *alibi* was set out in the case of *Morris* v *S*, SC 29/98 at pp 6-7:

> "The legal position is that there is no *onus* on an accused person to establish the defence of *alibi*. This was made clear many years ago in a number of cases, such as *R* v *Hlongwane* 1959 (3) SA 337 (AD). In that case, HOLMES AJA had this to say at 340H:-
>
> > 'The legal position with regard to an *alibi* is that there is no *onus* on an accused to establish it, and if it might reasonably be true, he must be acquitted. *R* v *Biya* 1952 (4) SA 514 (AD). But it is important to point out that in applying this test, the *alibi* does not have to be considered in isolation.'
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> Further on at 341 A-B the learned Judge of appeal continued: -
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> > 'The correct approach is to consider the *alibi* in the light of the totality of the evidence in the case, and the Court's impressions of the witnesses. In *Biya's* case *supra*-GREENBERG JA said at p 521 (the underlining being mine):
> >
> > > '… if <u>on all the evidence</u> there is a reasonable possibility that this *alibi* evidence is true it means that there is the same possibility that he has not committed the crime.'"

See also *Burt* v *S* SC 204/98 at p 8 and *Alphonse Mushanawani* v *The State* SC 108/22.

However, for a defence of *alibi* to succeed it ought to be timeously raised. In *Mathe* v *S*, SC 66/24 at p. 21 this Court stated that:

> "A defence of *alibi* is expected to be raised as soon as possible upon arrest, or at the very least during the early stages of investigations if it is to have any credence."
>
> See also *Madya* v *S*, SC 88/23

The rationale for such a requirement is, *inter alia*, to enable the police or investigators to be able to investigate the veracity of such a defence at an early stage before material evidence relating thereto is lost.

In casu, the appellant did not raise such a defence upon arrest or soon thereafter. He did not disclose such a defence in his defence outline either. It is, apparently, something he stumbled upon in the midst of the trial and chose to try it out.

The appellant's defence on the third count, as per his defence outline, was that he could not have raped the complainant on the day in question because he had not been alone with the complainant for a long period of time. The suggestion that he needed to have been alone with the complainant for a long time is not the same as contending that he was not at the residence at the time of the alleged offence. If anything, it is a confirmation that he was at that residence but he could not have committed the offence because of the presence of other people.

His uncle (Brian's father), who resided in the same area of Epworth, could not with certainty confirm that the appellant could not have committed the offence in the morning of the day of the third count or that he was at his house the whole morning. The most he said was that the appellant came to his house at some point in the morning of that day.

It may also be noted that the appellant's contention that the complainant was ill-advised by her relatives to allege rape against him was never substantiated. It remained a bald assertion without substance. Thus, the findings of fact by the trial court that the incident had indeed occurred at a time the complainant was preparing to go to school cannot be held to be irrational. It must be borne in mind that the parties are related and they were residing at the same house during the period in question.

In a further twist to his defence, the appellant was heard to say, in his evidence, that he had found Tapiwa and the complainant naked in bed and so this matter was reported against him so as to pre-empt his revelations to family elders.

As with the issue of *alibi*, this only arose as an afterthought in his evidence. This new found *causa* for the allegations was contrary to his defence outline wherein the pith of his defence was that:

> "The accused will further state that these are purely fabricated allegations being peddled by the complainant who is ill-advised by other members of the family who are bent on destroying the accused, his mother and grandmother."

Clearly the trial court cannot be said to have misdirected itself in rejecting the belatedly raised defences. Equally, the court *a quo* cannot be faulted for upholding the trial court's findings in this regard. The appellant was his own worst enemy by shifting the *causa* for the allegations and ending up with no basis whatsoever to allege or contend that the allegations were a fabrication. The appellant was correctly convicted in respect of the third count and the conviction was properly upheld by the court *a quo*.

The appeal has no merit and was thus dismissed as follows:

"The appeal be and is hereby dismissed in its entirety."

MAVANGIRA JA : I agree.

KUDYA JA : I agree.

Rubaya & Chatambudza, appellant's legal practitioners.

The National Prosecuting Authority, respondent's legal practitioners.